

HOUSE SUBSTITUTE FOR
SENATE BILL NO. 433

A bill to amend 1976 PA 451, entitled
"The revised school code,"
(MCL 380.1 to 380.1852) by adding section 1509.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 1509. (1) By not later than July 1, 2027, the department
2 of health and human services shall develop, and provide to the
3 department, an informational notice in English, Spanish, and
4 Arabic, containing all of the following:

5 (a) Information on the dangers of tobacco products, vapor
6 products, alternative nicotine products, THC cannabis products, and
7 synthetic intoxicating hemp.

8 (b) Resources to support prevention and treatment.

9 (c) Information on how to recognize the signs of THC poisoning



1 and the proper steps to take if an individual is showing signs of
2 THC poisoning.

3 (2) The department of health and human services shall annually
4 update the informational notice developed under subsection (1) to
5 account for any changes in health education or medical research
6 related to the dangers of tobacco products, vapor products,
7 alternative nicotine products, THC cannabis products, or synthetic
8 intoxicating hemp, and shall provide the updated notice to the
9 department by not later than July 1 of each year.

10 (3) The department shall provide the informational notices
11 described in subsections (1) and (2) to public schools and
12 nonpublic schools and post the informational notices on the
13 department's website.

14 (4) Beginning with the 2027-2028 school year, the board of a
15 school district or intermediate school district, board of directors
16 of a public school academy, or governing body of a nonpublic school
17 shall ensure that the informational notices described in
18 subsections (1) and (2), as applicable, are provided to the parent
19 or legal guardian of each pupil enrolled in the school district,
20 intermediate school district, public school academy, or nonpublic
21 school by not later than October 1 of each year.

22 (5) Beginning with the 2027-2028 school year, the board of a
23 school district or intermediate school district, board of directors
24 of a public school academy, or governing body of a nonpublic school
25 shall post a link to the department webpage described in subsection
26 (3) on the website of the school district, intermediate school
27 district, public school academy, or nonpublic school.

28 (6) An informational notice described in this section may be
29 sent electronically or by mail.



1 (7) The department, the department of health and human
2 services, a school district, an intermediate school district, a
3 public school academy, a nonpublic school, and any officers, board
4 members, or employees of those institutions are immune from civil
5 liability, both personally and professionally, for any damages
6 allegedly caused by, arising out of, or relating to the
7 informational notice developed under this section.

8 (8) As used in this section:

9 (a) "Alternative nicotine product" means that term as defined
10 in section 4 of the youth tobacco act, 1915 PA 31, MCL 722.644.

11 (b) "THC" means that term as defined in section 3 of the
12 Michigan Regulation and Taxation of Marihuana Act, 2018 IL 1, MCL
13 333.27953.

14 (c) "Tobacco product" means that term as defined in section 4
15 of the youth tobacco act, 1915 PA 31, MCL 722.644.

16 (d) "Vapor product" means that term as defined in section 4 of
17 the youth tobacco act, 1915 PA 31, MCL 722.644.